26TRCV01539 26TRCV01539

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-07

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Case Number: 26TRCV01539 Hearing Date: August 7, 2026 Dept: B

Moving Parties: Defendants Hawthorne
International Corp., Saboor Hamidzadah, and Zarmina Hamidzadah

Responding
Party: Plaintiff One Eshelman, LLC

(1)
Demurrer

(2)
Motion to Strike

The Court considered the moving and opposition papers.

RULING

See
below.

BACKGROUND

On April 29, 2026, plaintiff One Eshelman, LLC filed a
complaint against Hawthorne International Corporation, Saboor Hamidzadah, and
Zarmina Hamidzadah for (1) breach of contract, (2) common counts, and (3)
negligence.

LEGAL
AUTHORITY

Demurrer

When considering demurrers, courts read the allegations liberally and in context. Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal. App. 4th 1216, 1228. “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” SKF Farms v. Superior Court (1984) 153 Cal. App. 3d 902, 905. “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” Hahn v. Mirda (2007) 147 Cal. App. 4th 740, 747.

Strike

“The court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” CCP §436(b).

CCP §431.10 states:
“(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An ‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendants demur to each cause of action on the ground that they fail to allege sufficient facts to constitute a cause of action.

The complaint alleges that on September 21, 1998, Hassan Bogsara owned real property at 24202 Hawthorne Blvd., Torrance. Complaint, ¶7. Bogsara executed a commercial lease for the premises with defendants. Id., ¶8. On October 24, 2000,Shakour Hamidzadah incorporated a California corporation known as Hawthorne International Corporation, identifying himself as the sole director of the corporation. Id., ¶9. On November 9, 2022, Hawthorne International entered into a month-to-month commercial lease with Bogsara for the premises, agreeing to pay rent of $7500 a month. Id., ¶10. On January 19, 2023, Hawthorne International filed a Statement of Information with Secretary of State identifying Saboor and Zarmina Hamidzadah as the corporation's directors. Saboor was listed as CEO and Zarmina was listed as Secretary. Id., ¶11. In March 2024, plaintiff entered into an agreement to purchase the commercial property from Bogsara. Id., ¶12. Prior to the close of escrow, plaintiff approached defendants to discuss Hawthorne's intention to enter into a long-term lease. Id., ¶13. On April 14, 2024, plaintiff's broker emailed a rental agreement and addendums to defendant Saboor. Id., ¶14. On April 30, plaintiff received an email from an attorney informing plaintiff that defendants had rejected the proposed agreement and directing that all future communications be sent to counsel. Id., ¶15.

The complaint further alleges that plaintiff demanded that defendants provide a plan for vacating the premises and reminded them of the upcoming May 2024 rent. Id., ¶16. On May 8, 2024, defendants informed plaintiff that they would vacate the premises before the end of the month. Id., ¶17. On May 17, 2024, defendants surrendered possession of the premises. Id., ¶18. For weeks after entering the premises, plaintiff discovered extensive damage caused during defendants' occupancy, including rodent infestation within the walls and ceiling acoustic tiles, and prolonged water leaks. Id., ¶19.

Inspection revealed that defendants were aware of the infestation and water leaks but failed to remedy them, instead using improper materials and techniques to conceal the conditions.
Id., ¶20. Defendants had created openings for refrigeration copper line and electric conduits through which rodents entered the market, and instead of properly sealing the openings, defendants used spray-foam insulation to block the holes, which had failed to prevent rodent entry. Id., ¶21. Between May 17, 2024 and November 30, 2024, plaintiff incurred $59,828 in repair costs to repair the unsanitary, hazardous, and deteriorated conditions caused by defendants' neglect. Id., ¶22.

The complaint further alleges that the rented premises consisted of a ground-level commercial space used by defendant as a grocery store, as well as an additional area located on the second floor of the structure. Because of the condition of the premises, plaintiff was unable to re-rent the property until December 1, 2024, resulting in six months of lost rental income for the period of June 2024 through November 2024. Upon re-renting the premises, the ground floor commercial space was leased for $11,000 per month. The upstairs area was leased separately to a different tenant for $2700 per month. Based on these rental amounts, the fair rental value of the premises is at least $13,700 per month. Id., ¶24.
After vacating the premises, defendants failed to pay the May 2024 rent. Plaintiff demanded payment, but defendants refused. Id., ¶25. Defendants tendered a check in the amount of $4705.41, which plaintiff did not accept because the amount was less than the amount due. Id., ¶26. On August 28, 2024, Hawthorne International filed a Certificate of Election to Wind Up and Dissolve with Secretary of State. Id., ¶27. A Certificate of Dissolution was issued on September 4, 2024. Id., ¶28.

Alter ego

As for alter ego, the complaint alleges that each defendant was at all times acting as the agent, servant, employee, representative, partner, joint venturer, or alter ego of the other defendants, and that each defendant acted within the course and scope of such agency, service, representation, or employment.
Complaint, at Attachment 9, ¶1.
The purpose and function of the alter ego doctrine is to prevent

injustice, and that the doctrine is properly invoked where adherence to the fiction of separate corporate existence would sanction a fraud or promote injustice. Id., ¶3. Defendants acted without corporate separateness and in fad faith by failing to apply or comply with applicable California laws, thereby rendering any claimed corporate separateness illusory and not real. Id., ¶4. Failure to disregard the separate corporate identities of defendants would result in fraud, confusion, and injustice to plaintiff. Id., ¶5. There now exists a unity of interest and ownership among defendants such that any individuality and separateness among them have ceased and that each defendant is the alter ego of the others. Id., ¶6. See also paras. 27, 28.

First cause of action for breach of contract

Defendants argue that the complaint does not allege the existence of a contract between individual defendants Saboor and Zarmina. Defendants also argue that the allegations are insufficient as to alter ego.

In opposition, plaintiff argues that the allegations are sufficient to meet the elements for breach of contract as defendants breached by refusing to pay May 2024 rent and by failing to maintain the premises. Plaintiff further argues that the complaint sufficiently alleges alter ego.

The Court finds that the allegations are insufficient as to individual defendants. They are not parties to the lease agreement and the allegations are insufficient as to alter ego. The purpose of alter ego liability is to disregard the fictional facade of the corporation and hold those individuals doing business under the corporate name liable for the corporation debts in order to prevent an injustice. See Sonora Diamond Corp. v. Superior Court (2000) 83 Cal. App. 4th 523, 538. The doctrine of alter ego comes into play when a plaintiff claims a defendant “is using the corporate form unjustly and in derogation of the plaintiff’s interests.” Mesler v. Bragg Management Co. (1985) 39 Cal. 3d 290, 300. The alter ego doctrine “is an extreme remedy, sparingly used.” Sonora Diamond, supra at 538-539. The plaintiff has the burden of overcoming the presumption the corporate entity has a separate existence. Mid-Century Ins. Co. v. Gardner (1992) 9 Cal. App. 4th 1205, 1212. “In California, two conditions must be met before the alter ego doctrine will be

invoked. First, there must be such a
unity of interest and ownership between the corporation and its equitable owner
that the separate personalities of the corporation and the shareholder do not
in reality exist. Second, there must be
an inequitable result if the acts in question are treated as those of the
corporation alone." Sonora Diamond,
supra at 538.

Among
the factors relevant to determining an alter ego relationship are "the
commingling of funds and other assets, the failure to separate the assets of
separate entities, the treatment of the corporation's assets as those of an
individual or other corporation, holding out that the individual or other
corporation is personally liable for the first corporation's debts, the failure
to maintain separate records or the commingling of the records of the entities,
identical equitable ownership in the two entities, the equitable owners'
domination and control of the entities, the use of the same business location,
an identity of employees or attorneys in separate entities, the use of the
corporation as a mere shell or instrumentality for the conduct of the affairs
of another entity, the failure to maintain arm's length transactions between
entities and the diversion of assets." United
Community Church v. Garcin (1991) 231 Cal. App. 3d 327, 343.

The alter
ego allegations are conclusory.

The
demurrer is SUSTAINED WITH LEAVE TO AMEND as to the individual defendants and
OVERRULED as to Hawthorne International Corp.

Second cause of action for common count

"The essential elements of an account stated are: (1)
previous transactions between the parties establishing the relationship of
debtor and creditor; (2) an agreement between the parties, express or implied,
on the amount due from the debtor to the creditor; [and] (3) a promise by the
debtor, express or implied, to pay the amount due." Zinn v. Fred R. Bright Co. (1969) 271
Cal. App. 2d 597, 600; see CACI 373.

The

complaint alleges that defendant Hawthorne International became indebted to plaintiff within the last four years because an account was stated in writing by and between plaintiff and defendant in which it was agreed that defendant was indebted to plaintiff. Complaint, ¶CC-1.a. Defendants became indebted to plaintiff in an amount to be proven at trial for unpaid rent for defendants' holdover occupancy of the premises after termination of the tenancy. Defendants remained in possession without right, title, or permission and failed to pay rent for said period despite demand. After defendants vacated the premises, plaintiff discovered that defendants had caused extensive and unreasonable damage to the property beyond ordinary wear and tear, requiring substantial repair and remediation.
Defendants have failed and refused to pay plaintiff for the unpaid rent and the cost to repair the damages. Id., ¶CC-1.b.(6).

Defendants argue that the allegations are insufficient as to how payment would be owed as defendants chose not to reenter into a lease and that the underlying breach of contract cause of action is insufficiently plead.

In opposition, plaintiff contends that the allegations meet the elements for common count because defendants became indebted for "unpaid rent for holdover occupancy" and for costs to repair damage caused by defendants.

The Court finds that the allegations are sufficient to meet the elements to the extent that defendant Hawthorne agreed to pay rent and failed to pay rent for May 2024. Plaintiff can plead in the alternative to breach of contract. The Court notes that no amount of damages is pled for unpaid rent.

The demurrer is OVERRULED as to Hawthorne International and SUSTAINED WITH LEAVE TO AMEND as to the individual defendants.

Third cause of action for negligence

The complaint alleges that in March 2024, plaintiff entered into an agreement to purchase the commercial property from Hassan Bogsara. Plaintiff, as the purchaser of the premises, succeeded to all rights and obligations of the prior landlord

under the existing written lease with defendants. As the new owner, plaintiff acquired the property subject to the lease, assumed all landlord duties arising thereunder, and became entitled to receive rent and enforce the terms of the lease of the subject property. Complaint, at GN-1, ¶1. Defendant Hawthorne was a tenant/occupant/operator of the premises pursuant to a written lease agreement. Id., ¶2. During defendants' tenancy, defendants owed a duty to keep the premises in a clean, sanitary, and safe condition, and to avoid creating hazardous conditions.
Id., ¶7. Defendants breached this duty by failing to properly store, remove, or dispose of waste and food products; allowing debris, garbage, and unsanitary materials to accumulate over a prolonged period; failing to implement or cooperate with pest control measures; failing to remedy prolonged water leaks; and failing to keep the premises in a functioning and sanitary condition. Id., ¶8.
As a result of defendants' conduct, severe rodent infestation developed and persisted for years at the premises.
Id., ¶9. The infestation and prolonged water leak caused substantial damage to the structure. Id., ¶10.
Plaintiff has suffered damages including costs of pest eradication and remediation, property damage repair, loss of use of premises, and diminution in property value. Id., ¶11.

Defendants argue that the claim is duplicative of the first cause of action and is not an independent tort as the relationship between landlord and tenant is governed by the lease agreement, and the tenant's obligations regarding maintenance and repair are, at their core, contractual. Defendants assert that this claim is premised entirely upon duties arising from the lease and that the lease allocates responsibility for maintenance and repair of the premises onto the landlord. Defendants contend that plaintiff does not identify any duty owed by defendants, independent of the contractual relationship with Hawthorne, that would support a negligence claim. Defendants also argue that "lost rental income" is too speculative to be deemed foreseeable and plaintiff cannot recover lost profits as defendants' liability under the lease is limited to the agreed monthly rent of $7500.

In opposition, plaintiff argues that defendants' duty exists completely independent of the contract or arises from conduct that is both intentional and intended to cause harm.

Plaintiff disputes that the damages are speculative.

The Court finds that the allegations are sufficient as to Hawthorne International. Defendant has a duty independent of the lease agreement to repair property damage caused by lack of ordinary care and refrain from causing damage to the property of another. See, e.g., Civ. Code §§ 1714, 1929.

The demurrer is OVERRULED as to Hawthorne International and SUSTAINED WITH LEAVE TO AMEND as to the individual defendants.

Motion to Strike

Defendants request that the Court strike damages at para. BC-4, GN-1 at para. 11, and Attachment 9 at para. 24 and “alter ego” allegations at Attachment 9 at paras. 1, 3, 4, 5, 6 and at GN-1 at paras. 4 and 5.

Lost rental income

Defendants argue that the complaint improperly seeks damages for six months of lost rental income as the holdover and remedies provisions of the lease limits Hawthorne’s liability to the agreed monthly rent of $7500.
The motion to strike is DENIED as to these allegations.

Alter ego

Defendants argue that the allegations are insufficient as to “alter ego.” As stated above, the Court finds that the allegations are conclusory. In light of the ruling on the demurrer, the motion to strike the alter ego allegations is MOOT as plaintiff is given leave to amend.

ORDER

The demurrer is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND as to the individual defendants. The demurrer is OVERRULED as to Hawthorne International Corp.

The motion to strike is DENIED as to para. BC-4, GN-1 at para. 11, and Attachment 9.

The motion to strike is otherwise MOOT in light of the ruling on demurrer.

Defendants are ordered to give notice of ruling.